

§437c, subd. (p)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subd. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

The affidavits of the moving party are strictly construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Parker, supra* 3 Cal.3d at p. 181.) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Elements of Causes of Action. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

Plaintiff's undisputed material facts establish that Plaintiff provided Defendant a line of credit on which Defendant incurred charges. (Plaintiff's Undisputed Material Facts ("UMF") #1-3.) Defendant is obligated to repay Plaintiff for credit used. (UMF #1-2.) Plaintiff sent Defendant regular monthly statements of the account, which were not disputed. (UMF #4-5.) Defendant has defaulted on payments for the line of credit. (UMF #6-7.) Defendant owes \$22,087.32 on the line of credit. (UMF #8.)

These undisputed material facts establish every element of Plaintiff's cause of action for breach of contract. Defendant does not raise a triable issue of material fact in response as Defendant has filed no opposition and raises no independent evidence.

Conclusion. Plaintiff's unopposed motion for summary judgment is granted.

BANK OF AMERICA N.A. vs. STELLA MALL
Case No. CL25-06057

Motion by Defendant to Set Aside Default and Default Judgment

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

A proof of service for a summons that complies with statutory requirements creates a rebuttable presumption that service was proper. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025), §4:362, p. 66. "A declaration of service by a registered process server establishes a rebuttable presumption that the facts stated in the declaration are true." 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group), §4:367, p. 66, citing Evidence Code §647.

One of the manners of service authorized for summons and complaint is substituted service. C.C.P. §415.20(b) authorizes substituted service by delivery if a copy of summons and complaint to the dwelling place of the person intended to be served, leaving it "in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age", and thereafter mailing another copy to that same address, addressed to the person intended to be served.

Plaintiff has submitted evidence of valid substitute service. (Plaintiff's exhibits one and two.) The Court notes that the address where substitute service occurred is the same address that Defendant uses in filing the instant motion.

Defendant's declaration to the motion to set aside is insufficient to rebut the presumption that the service was proper. Defendant's declaration states that there was no personal service but fails to challenge proper substitute service.

Similarly, Defendant fails to set forth any other valid grounds to set aside and vacate default.

Defendant's motion to set aside default and default judgment is therefore denied.

TOWER NT, LLC vs. TANNER'S LEANFEAST 1, LLC; ET AL.
Case No. CU24-01197

LEANFEAST and TANNER's Motion for Compel Plaintiff's Further Responses to Requests for Production

TENTATIVE RULING

Defendants TANNER'S LEANFEAST 1, LLC and FRANCIS CARL TANNER IV ("Moving Defendants") move to compel Plaintiff TOWER NT, LLC to further respond to seven requests for production. This matter concerns alleged failure to pay rent on a commercial lease. Moving Defendants state that the material they seek to discover relates to Plaintiff's attempts to mitigate its damages from Moving Defendants' alleged nonpayment of rent.